SIMBARASHE KAMBAMURA
versus
RACHEL KWASHIRA
and
MINISTER OF NATIONAL HOUSING AND SOCIAL AMENITIES N.O

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 2, 3 June & 2 July 2026

Civil Trial

S Mapanje, for the plaintiff
M B Lunga, for the 1st defendant
P Chibanda, for the 2nd defendant

DEMBURE J: These proceedings commenced as a court application for a declaratory order and consequential relief in terms of s 14 of the High Court Act [*Chapter 7:06*]. The matter was opposed and was heard before MUSITHU J on 22 September 2023. The court referred the application to trial for determination as an action matter. In terms of the court order, the application and the opposition thereto were to stand as the summons and the appearance to defend, respectively. The parties were further directed to file subsequent pleadings in the action, and the matter proceeded in accordance with the rules of court.

In this matter, the plaintiff and the first defendant are haggling over an immovable property known as stand number 1341 Whitecliff, Harare. They both claim to have acquired the piece of land from the State through the then Ministry of Local Government, now under the Ministry of National Housing and Social Amenities, the office of the second defendant. The dispute centres on who was lawfully allocated the property in question. The plaintiff seeks that he be declared the rightful owner or holder of the rights, title, and interest in the said property, and, consequently, that the first defendant be ejected therefrom. These proceedings followed the Magistrates Court's judgment of 12 July 2022 in which it dismissed the plaintiff's claim for want

of jurisdiction, a decision confirmed on appeal by the court: see *Kambamura* v *Kwashira & Anor* HH 889/22.

THE BACKGROUND

The plaintiff is Simbarashe Kambamura, an adult male. The first defendant is Rachel Kwashira, an adult female. The second defendant is the Minister of National Housing and Social Amenities, cited in his official capacity as the responsible authority in the allocation of the property in question.

The following facts are common cause:

1. The registered owner of the piece of land known as stand number 1341 Whitecliff, Harare (*"the property or stand"*) is the State. The property is a low-density residential stand measuring 2 000 square metres.

2. The Ministry of National Housing and Social Amenities administered a Government programme which originally was spearheaded by the Ministry of Local Government, called "Garikai/Hlalani Kuhle" Housing Scheme after what has commonly been referred to as "Operation Murambatsvina". The stand in question fell under the said Scheme managed by the Ministry of National Housing and Social Amenities, the office of the second defendant. This Ministry was created out of the Ministry of Local Government. It is the lawful authority responsible for allocating stands in the area, including the one in question. It is, therefore, the sole official holder of all records in the allocation or acquisition of the stands in Whitecliff South where the stand is situated.

3. Sometime in 2011, the Government prepared a layout plan for Whitecliff South, which had three zones: high, medium and low density. The allocation of the stands to beneficiaries commenced in 2011 through a computer-based acquisition system for purchasers. It was not challenged that there were no offer letters, allocation letters, or agreements of sale issued concerning the acquisition process for the stands in question, but that purchasers were required to pay a deposit of US$1 000 to be allocated a stand number by the system, electronically managed, and thereafter make further payments. According to the Scheme, the receipts generated by the system and machine-printed at the Ministry confirm a person's allocation or rightful ownership of the stand.

4. The first defendant is in possession of the property in question. She has erected a structure on the land. Her occupation or possession of the property is without the consent of the plaintiff.

The plaintiff commenced these proceedings through a notice of motion filed on 5 March 2023. As per the draft order, the plaintiff seeks to be declared the lawful owner of the property, and consequential relief, namely the ejectment of the first defendant and all those claiming occupation through her therefrom and costs of suit. The plaintiff's case is that he acquired the stand from the then Ministry of Local Government in 2011, which subsequently became a stand-alone Ministry under the second defendant, separated from the now Ministry of Local Government. He acquired the property by paying a US$1 000 deposit, as required, and US$4 000 toward the total purchase price of US$5 000. He paid US$4 000 in instalments deducted from his monthly salary. It is further averred that the first defendant unlawfully took occupation of his property sometime in March 2020 without his authority or that of the second defendant.

The plaintiff proceeded to sue out a summons in the Magistrates Court, seeking an order for the ejectment of the first defendant and all those claiming occupation through her from the property, and costs of suit, a matter registered under case number 5010/22. The lower court handed down its judgment on 12 July 2022, declining jurisdiction on the basis that the court was faced with two purchasers who are in more or less similar predicament and that the ownership wrangle can only be resolved by the High Court through a *declaratur* wherein the court declares who is the legal owner of the stand. The court reasoned that it had no jurisdiction to grant a declaratory order that would have the effect of evicting the illegal occupant. The claim was accordingly dismissed on that basis. The plaintiff's appeal, as alluded to above, was dismissed before MAXWELL and TSANGA JJ, who upheld the Magistrates' Court's decision. This led the plaintiff to approach the court seeking the declaratory order and consequential relief in this case.

Following the conversion of the proceedings into an action before MUSITHU J, the first defendant filed her plea. She did not file any claim in reconvention. She disputed the plaintiff's claim alleging that the stand was allocated to her by the then Ministry of Local Government, now the Ministry of National Housing and Social Amenities. She further contended that she took occupation of the stand in 2011 after being resettled in the area by the ZANU PF Resettlement Programme which started in 2005. She admitted that she had no title to the property or a valid

agreement of sale but averred that she is in lawful occupation thereof by virtue of authority from the Ministry of Local Government after she was allocated the same. She stated that she was in a better position than the plaintiff as she had made improvements on the property valued at about US$40 000.

The plaintiff maintained his position in his replication and joined issue with the first defendant. The second defendant did not contest the claim. Through his legal practitioners, the Minister formally filed a notice stating that he was not opposed to the claim as the Ministry allocated the land to the plaintiff. The notice further confirmed that the plaintiff is the lawful owner of the property.

A Pre-Trial Conference was held before MANZUNZU J, who referred the matter to trial on the issues agreed by the parties in the joint minute filed on 11 February 2025. In the said minute, the agreed issues for trial are couched as follows:

> "1. Whether or not the stand 1341 was allocated to the Plaintiff or the first Defendant by the second Defendant.
> 2. If the answer to the above favour the Plaintiff, who is liable to compensate first Defendant for the improvements at the stand.
> 3. If so, the quantum thereof."

Before the trial commenced, I raised a query as to how numbers (2) and (3) could be properly be issues for trial given that in the pleadings the first defendant did not file a counterclaim for any improvements. The determination of the liability to make good such improvements and the quantum of the value thereof does not arise from the pleadings. The parties' legal practitioners concurred with the court's view. With the consent of the parties, the issues were amended, and the agreed triable issues are as follows:

> "1. Whether or not stand no. 1341 Whitecliff was allocated to the plaintiff by the second defendant?
> 2. Whether or not the plaintiff is entitled to the relief sought?"

The plaintiff sought an amendment of the draft order to specify the *declaratur* being sought by the insertion of para (2) to state that the plaintiff be and is hereby declared the rightful owner of stand 1341 Whitecliff Harare. The amendment would result in the other para(s) becoming para(s) (3) and (4). The amendment was with the consent of the defendants.

The plaintiff led evidence as the sole witness in his own case. The first defendant also testified in her own case, while for the second defendant, one Owen Nhoro, the Estate Management officer in the Ministry of National Housing and Social Amenities testified. I will not regurgitate their evidence, as it is fully recorded and part of the record.

THE LAW

The remedy being sought by the plaintiff is one for a declaratory order and consequential relief. It is well settled that this court has jurisdiction to grant a declaratory order with or without consequential relief in terms of s 14 of the High Court Act. The grant of a *declaratur* is also wholly within the discretion of the court. The law is also clear that for the court to grant a *declaratur*, the applicant must show that he or she is an interested person in the sense of having a direct and substantial interest in the subject matter of the litigation. The interest must also concern an existing, future or contingent right or obligation. The court, however, does not concern itself with determining abstract or academic matters unrelated to the interest. The court must also be satisfied that the matter is a proper case for the exercise of its discretion, which is the second stage of the enquiry. GUBBAY CJ (as he then was) explained the law fully in *Munn Publishing (Pvt) Ltd* v *Zimbabwe Broadcasting Corporation* 1994 (1) ZLR 337 (S) at 343-344, where he said:

> "The condition precedent to the grant of a declaratory order is that the applicant must be an interested person, in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. See *United Watch & Diamond Co (Pty) Ltd & Ors* v *Disa Hotels Ltd & Anor* 1972 (4) SA 409 (C) at 415 in fine; *Milani & Anor v South African Medical & Dental Council & Anor* 1990 (1) SA 899 (T) at 902G–H. The interest must relate to an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated to such interest. See *Anglo-Transvaal Collieries Ltd v SA Mutual Life Assurance Soc* 1977 (3) SA 631 (T) at 635G–H. But the existence of an actual dispute between persons interested is not a statutory requirement to an exercise by the court of jurisdiction. See *Ex p Nell* 1963 (1) SA 754 (A) at 759H–760A. Nor does the availability of another remedy render the grant of a declaratory order incompetent. See *Gelcon Investments (Pvt) Ltd* v *Adair Properties (Pvt) Ltd* 1969 (2) RLR 120 (G) at 128A–B; 1969 (3) SA 142 (R) at 144D–F.
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> This, then, is the first stage in the determination by the court. At the second stage of the enquiry, it is incumbent upon the court to decide whether or not the case in question is a proper one for the exercise of its discretion under s 14. What constitutes a proper case was considered by *Williamson J in Adbro Investment Co Ltd* v *Minister of the Interior &Ors* 1961 (3) SA 283 (T) at 285B–C, to be one which, generally speaking, showed that —
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> > '…despite the fact that no consequential relief is being claimed or perhaps could be claimed in the proceedings, yet nevertheless justice or convenience demands that a

> declaration be made, for instance as to the existence of or as to the nature of a legal right claimed by the applicant or of a legal obligation said to be due by a respondent. I think that a proper case for a purely declaratory order is not made out if the result is merely a decision on a matter which is really of mere academic interest to the applicant. I feel that some tangible and justifiable advantage in relation to the applicant's position with reference to an existing future or contingent legal right or obligation must appear to flow from the grant of the declaratory order sought." See also *Reinecke* v *Incorporated General Insurances Ltd* 1974 (2) SA 84 (A) at 93D–H.'"

See also *Johnsen* v *Agricultural Finance Corp* 1995 (1) ZLR 65 (S) at 72E-F.

ANALYSIS AND DETERMINATION

In *casu*, the plaintiff's case was supported not only by the documents he produced but also by the machine-printed account schedule produced by the second defendant's witness, Owen Nhoro (*"Mr Nhoro"*), whose testimony corroborated the plaintiff's case. The plaintiff was a credible witness. There was no dispute that the first requirement for the acquisition of a stand under the Scheme operated by the second defendant in Whitecliff South was the payment of a deposit of US$1 000. Mr Nhoro's unchallenged testimony was that this was a unique, computerised allocation system. He said the allocation was processed through the system, which would generate the receipts without any manual selection. The system would select the stand number for each individual on a first-come, first-served basis, contingent on payment of the deposit. The Ministry did this to prevent tampering with manually produced receipts. He further confirmed that no offer letters or allocation letters were issued, but evidence of such allocation or acquisition would be provided by the receipts produced by the system. He also confirmed that no written agreements of sale were issued as part of the process. He further confirmed that the plaintiff paid the US$1 000 deposit and was allocated the stand in question. He also made further payments towards the acquisition of the property as shown on Exhibit 4.

Mr Nhoro's evidence on the peculiar nature of the transaction involving the plaintiff and the second defendant was not seriously challenged under cross-examination by Mr *Lunga*, for the first defendant. It is trite that evidence not challenged on cross-examination is taken to have been accepted as correct. See *President of the Republic of South Africa & Ors* v *South African Rugby Football Union & Ors* 2000 (1) SA 1 para 61, where the Constitutional Court of South Africa highlighted the purpose and importance of cross-examination held as follows:

> "The institution of cross-examination not only constitutes a right; it also imposes certain obligations. As a general rule it is essential, when it is intended to suggest that a witness is not speaking the truth on a particular point, to direct the witness's attention to the fact by questions put in cross-examination showing that the imputation is intended to be made and to afford the witness an opportunity, while still in the witness-box, of giving any explanation open to the witness and of defending his or her character. If a point in dispute is left unchallenged in cross-examination, the party calling the witness is entitled to assume that the unchallenged witness's testimony is accepted as correct. This rule was enunciated by the House of Lords in *Browne* v *Dunn* [[1893] 6 R 67 (HL)] and has been adopted and consistently followed by our courts."

The schedule at pp 155-157, tendered as Exhibit 4, clearly establishes that the plaintiff's name is duly registered by the Ministry as the purchaser of the stand, and that stand 1341 is also identified therein as the property for which the payments were made. The official further confirmed the plaintiff's evidence that the receipts issued in respect of the payments made confirm the acquisition by the plaintiff of the stand or are evidence of the allocation or ownership of the stand. When asked about the document at pp 155-157 (Exhibit 4), Mr Nhoro confirms the position applicable to the acquisition of the stand or the transaction between the parties as follows:

> "Q. What is the significance of this doc as per the Garikayi program?
> **A. That is the basis we use to confer tenancy and ownership of the property.**
> Q. Explain to the court the current status of the documents relating to the stands in Whitecliff.
> A. The current documents we use in relation to the allocation are the receipts. Those are the current documents we are using.
> **Q. You confirm that there are no other documents to use to confirm ownership**
> **A. As of now, yes.**
> Q. How would you comment if someone would come and tell the court that they are holders of an offer letter?
> A. I would advise the court that **as far as the allocation of the stands in this category, there were no offer letters that were issued."** (*my emphasis*)

The above position was confirmed even under cross-examination by Mr *Nhoro*. Mr *Lunga*'s argument is that because there was no offer letter or written agreement of sale, then the plaintiff could not have acquired any rights in the land. This argument is clearly misplaced. The special circumstances before me are entirely different from the cases of the land reform programme in respect of agricultural land he cited. Thus, the case of *Commercial Farmers' Union* v *Minister of Lands* SC 31/10, in which it was held that the holder of a valid offer letter

has the right to occupy and evict, is inapplicable to this case. In any case, that judgment does not set out the law governing this transaction related to urban land.

The law recognises not only written contracts of sale; verbal contracts are also permissible. What matters is the agreement between the parties, which must with certainty confirm the nature of their agreement and the acquisition of rights in the property. Each case must be determined in its own circumstances. If the facts establish that the transaction resulted in the other party acquiring rights in the property and exclusive entitlement to develop, the court may still consider one to be the rightful or lawful owner of the property notwithstanding that the title deed is still registered in the name of the State. The issue of the rightful owner can thus still be determined notwithstanding that the actual registration of title of the property in the Deeds Registry. Thus, the court may go beyond the mere fact that title deeds are registered in one's name in the determination of who the true owner of the property is. This was affirmed by the Supreme Court in *Kawadza* v *Kawadza* 2019 (1) ZLR 226 (S) at 234 at p 234A-B, where it stated:

> "**The appellant cannot therefore be allowed to rely on the fact that the property was registered in his name. Although it is true that registration of an immovable property raises a presumption of ownership**, where a party proves that registration was done as an administrative necessity like in this case, **one cannot rely on registration to assert the right of ownership**. The family entered into an agreement in terms of which the appellant because of his ability to obtain a loan from CABS to help pay the balance be registered as the owner. The property was registered in the appellant's name to secure the loan. The respondents together with their mother, Christine Kawadza paid the monthly instalments… **The court a quo correctly found that the rightful owner of the property was the late Christine Kawadza**." (*my emphasis*)

The plaintiff's evidence is very clear that he duly paid the requisite deposit of US$1 000 on 26 September 2011. The proof of such payment was tendered in Exhibit 1. It was also confirmed from the schedule Exhibit 4 produced by Mr Nhoro. The plaintiff also produced receipts for the further payments he made (Exhibit 2) towards the purchase of the property totalling US$4 000, and these receipts also state the stand number as stand 1341. These were not challenged by any evidence to the contrary. Further payments were also made from deductions from his salary. He produced the payslips thereof. In the pleadings, the first defendant's contention was that the payslips did not state the stand number; however, under cross-examination, the plaintiff was not challenged on these payslips. In any case, the payments he

made are also documented and confirmed in Exhibit 4, the official record from the responsible allocating authority. The payments made by the plaintiff, totaling $5 000, comprising a deposit of $1 000, show that he duly complied with the requirements of the Ministry under the Scheme to acquire rights in respect of the stand in question.

Mr *Lunga* sought to argue that the document at p 154, a letter by the Permanent Secretary, gave the stand number of the property allocated by the plaintiff as 1431, and that that is a different property. However, that letter was not formally tendered as evidence before me. Mr Nhoro stated that he is not the author and could not comment on its truthfulness. It is trite that documents which are not formally offered in evidence at a trial cannot be relied upon by the court unless the truth of their contents has been judicially admitted. There was no such admission before me. Since that document was not part of any party's evidence, it cannot be considered by the court. In any case, the schedule Exhibit 4 clearly identifies the stand number in question as against the plaintiff's name. The evidence confirms that the plaintiff indeed acquired the stand from the second defendant through a Scheme exclusively run by the same Ministry, beginning when the portfolio was still under the Ministry of Local Government. That the Ministry of National Housing is the official custodian of all records for the allocations of the stands in the area in question was not in dispute. It is the responsible authority. To that end, the court can safely rely on its official records to determine who is the rightful owner or holder of the rights in the property. There is no evidence before me that discredits the evidence of the Ministry's official, Mr Nhoro, in this case, and the official documents he produced, which buttressed the plaintiff's case.

On the other hand, the first defendant's case rested solely on bald and unsubstantiated allegations. It is trite that bald and unsubstantiated assertions cannot establish a party's purported or announced position. See *Chinyenze* v *Law Society of Zimbabwe* SC 08/22 in para 39, where MAVANGIRA JA said:

> "It is trite that **courts,** and indeed the Tribunal, **decide matters on the basis of evidence that is placed before them and not on the mere say so of a litigant**. Every averment made must be substantiated by evidence in order for the court to place any weight on it. **Bald assertions will not assist a litigant who desires to establish his case."** (*my emphasis*)

See also *Buchwa Iron Ore Mining Company (Pvt) Ltd* v *Sheriff of the High Court Gweru N.O & Anor* SC 94/24 para 34, where GWAUNZA DCJ (as she then was) held that:

> "The law is clear on the consequences attaching to the adduction of insufficient or poor evidence before the court. In the recent case of *Dube* v *Murehwa* SC 68/21 at p10, the court aptly commented as follows on the impact of failure to adduce adequate evidence to one's claims;
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> > '**The law is clear that bald and unsubstantiated allegations do not establish a litigant's purported or announced position. See *Akhtar* v *Minister of Public Commission* SC 173/97.** The court *a quo's* decision cannot therefore be faulted because the evidence placed before it established on a balance of probabilities that the first respondent had rights emanating from the lease agreement with the second respondent **whilst the appellant only made bare allegations which were not sufficient to prove** the existence of any material disputes of facts.'
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> In a similar vein, in *Van Hoogstraten* v *Nelomwe* SC 4/20 it was stated as follows at pages 6 – 7:
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> > 'The quality of the appellant's evidence was so poor that the trial court cannot be faulted for rejecting it and embracing that of the respondents. The appellant has himself to thank for that outcome having done nothing to endear himself in the eyes of the court'." (*my emphasis*)

The first defendant's evidence was clearly incredible and so poor that I have no option but to reject it. It was not supported by anything from the responsible authority or the second defendant. She had completely nothing to establish that she had any lawful right to occupy the property or that she was allocated the same by the then Ministry of Local Government, or the Ministry of National Housing and Social Amenities. She had sought to rely on an illegible document at pp 139-140 which she claimed was a provisional allocation letter. The same does not clearly indicate any stand number. The other one was a handwritten note that simply stated: "Let Rachel Kwashira stay on stand 1341 Whitecliff South". This was also illegible, and, therefore, it was not clear who authored the handwritten note. Mr *Lunga* conceded that the documents were illegible and withdrew his application to tender them as part of the first defendant's evidence. She also had nothing to show that she was allocated the property first in 2005 under the alleged ZANU PF Resettlement Programme and by the Ministry of Local Government or the Ministry of National Housing. She admitted that the Ministry of National Housing is the office responsible for the Scheme and, as the responsible authority, could have lawfully allocated the stand or authorised her to occupy the property. See also para 2 of the plea.

She did not deny that payments for the stand were required to acquire it. She, however, alleged in her evidence in chief that Mr Nhoro advised her not to make any payments in 2013.

She admitted that she had nothing to substantiate this assertion. When Mr Nhoro came to the witness stand, he was not even asked about the first defendant's allegations that he had authorised her to occupy the stand and not to effect any payments in 2013 until further notice. Under the cross-examination of Mr Nhoro, Mr *Lunga* failed to put her version to the witness. It would only be proper, therefore, for the court to reject her evidence. It cannot be argued, therefore, that Mr Nhoro should not be believed. I endorse the pertinent sentiments expressed in *Small* v *Smith* 1954 (3) SA 434 (SWA) that:

> "It is, in my opinion, elementary and standard practice for a party to put to each opposing witness so much of his own case or defence as concerns that witness, and if need be, to inform him, if he has not been given notice thereof, that other witnesses will contradict him, so as to give him fair warning and an opportunity of explaining the contradiction and defending his own character. **It is grossly unfair and improper to let a witness's evidence go unchallenged in cross-examination and afterwards argue that he must be disbelieved**." (*my emphasis*)

It is also clear in this case that the first defendant was not content with a mere denial in her defence. She set out her own case that she was allocated the stand and authorised to possess it by the then Ministry of Local Government. It is trite that one who makes a positive assertion, whether the plaintiff or defendant, bears the *onus* of proving the facts so asserted. KORSAH JA in Nyahondo v *Hokonya & Ors* 1997 (2) ZLR 457 (S) at 459 had this to say:

> "Where a person against whom a claim is made is not content with a mere denial but sets up a special defence or raises a fresh issue (when he confesses and avoids) then he is regarded in respect of that defence as being the claimant; for his defence to be upheld he bears the *onus* of satisfying the court that he is entitled to succeed on it."

The first defendant failed to establish that she was allocated the same property by the Ministry of National Housing or through the office of the second defendant. As I have alluded to above, her case rested on nothing but bald and unsubstantiated allegations. Even Mr Nhoro, whom she repeatedly referred to in her testimony as the one through whom she was authorised, did not support her case. She did not put her evidence on what she had alleged in her evidence-in-chief concerning Mr Nhoro before him under cross-examination. In my view, it was apparent that the first defendant is simply an illegal occupier. She did not challenge the evidence relating to how the stands were allocated through the computer system. She also did not produce any proof of payment required to meet the requirements for acquiring or purchasing the stand under the Scheme. There was no evidence of any double allocation. Further, Mr Nhoro's evidence that

there was indeed a meeting with the plaintiff and second defendant in 2020, wherein she was advised that the rightful owner was the plaintiff and that she had to vacate the property, was also not challenged under cross-examination. This includes the fact that she was advised to complete a new application form for consideration. The second defendant's evidence, in any case, clarified that, according to the Ministry's records, the plaintiff is the rightful owner of the property. I accordingly agree with Ms *Mapanje* that the probabilities clearly favour the plaintiff.

In my view, the plaintiff clearly shows that he is an interested person who could be prejudicially affected by this court's judgment. The interest also concerns an existing, future or contingent right. He has clearly established a case for the declaratory order sought. The evidence before me shows that he duly acquired the property from the second defendant. The second defendant, the sole authority which managed the Scheme on behalf of the Government, confirmed that the plaintiff is the lawful or rightful holder of the rights, title and interest in the property. The matter is clearly resolved by the evidence before me, which shows that the plaintiff is the rightful owner of the property. The determination of the matter is not academic, as the plaintiff, having acquired the property, is entitled to enjoy all rights that flow from it, including to possess and develop it. The requirements for a *declaratur* have been satisfied.

This is also an appropriate case for the court to exercise its discretion in terms of s 14 of the High Court Act. The evidence is clear that the plaintiff has established his entitlement to the property in question. The first defendant, on the other hand, failed to show that she was entitled to succeed on her defence that she was allocated the stand and authorised to possess it by the second defendant or the Ministry of Local Government. There is no doubt that she is an illegal occupier. The mere fact that she has effected some improvements does not make her position any better. They are a product of an illegality; they too are illegal developments. They, therefore, lack legal existence and cannot be actionable in a court of law. There is nothing unconscionable about the court rejecting acts that are products of an illegality. Nothing valid can flow from an illegality. It would rather be unconscionable and contrary to public policy for the court to sanction the illegality.

The sentiments expressed by the court in *Kambamura* v *Kwashira* (*supra*) are of no consequence. It is clear that the Magistrates Court declined jurisdiction over the matter on the ground that it lacked jurisdiction to grant a declaratory order and dismissed the claim. The lower

court did not, therefore, resolve the dispute relating to whether or not the plaintiff is the rightful owner of the property. Nothing should turn on the judgment of the court that upheld the lower court's decision that it lacked jurisdiction over the matter. The position taken barred the lower court from addressing any other issues once it had found that it lacked jurisdiction. The finding that the court lacked jurisdiction marked the end of the matter. In *Gospel of God International 1932* v *Mungweru & Ors* SC 99/19, at p 6, MAKARAU JA (as she then was) said:

> "The above position is derived from the settled practice of the courts in this jurisdiction. It is the settled practice when writing a judgment to decide no more than what is absolutely necessary for the resolution of the legal dispute before the court. (See *Nzara and Others* v *Kashumba N.O. and Others* SC 18/18 and the authorities cited therein with approval). **Thus, for instance, if the court has no jurisdiction, no matter how interesting the legal point being raised by the parties, the settled practice is for the court to merely decline jurisdiction and withhold expressing an opinion on the interesting legal points**. Similarly with findings such as *in casu*, that the application is ill founded, the court has no basis for proceeding any further.
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> **A finding on a dispositive issue should mark the end of the court's enquiry and of its curiosity too**." (*my emphasis*)

Accordingly, because the lower court found that it lacked jurisdiction, the court of appeal could not render a binding decision on the merits of the dispute over who is the rightful holder of the rights in the property. Nothing should arise from the court's decision in *Kambamura* v *Kwashira & Anor* (*supra*) that assists the first defendant in her case.

The parties led evidence before me, and it was not established that any Government official engaged in any double dealing. In any case, the certified record of proceedings of the lower court was not tendered as evidence by any of the parties for consideration in terms of s 28 of the Civil Evidence Act [*Chapter 8:01*]. Accordingly, nothing would turn on the argument of estoppel and unconscionability. There was no case for the application of the doctrine of estoppel that was pleaded. It is trite that a party is bound by his or her pleadings. A litigant cannot plead one case and seek to prove another on trial. See *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* SC 24/18, para 25. The first defendant, therefore, attempted to remake her case in her closing submissions by invoking the doctrine of estoppel. Written submissions are not pleadings. It is also settled law that a party cannot make his or her case in closing submissions, and such submissions are not pleadings nor evidence. The requirements of estoppel ought to be proved to succeed. Thus, in *Econet Wireless (Pvt)* v *ZIMRA* SC 17/19, the court remarked that:

> "For the appellant to succeed in proving estoppel, it has to prove, and the authority for this proposition is the case of Andrew *Phillips (Pvt)* Ltd v *GDR Pneumatics (Pvt) Ltd* 1986 (2) ZLR 65(SC) 67, that the respondents or their officers made a representation in word or deed which might have reasonably misled the appellant; that the appellant was misled and that the representation induced the appellant to act as it did."

This is an appropriate case for the court to grant the declaratory order sought. The consequential relief flows from the *declaratur* that the plaintiff is the rightful owner or holder of rights, title and interest in the property. As the first defendant has no lawful right to occupy the property, the consequential relief ought to follow. The plaintiff testified that her occupation is without his authority or consent, and she also could not establish any right of retention of the plaintiff's property. The claim must accordingly succeed.

DISPOSITION

The plaintiff established, on a balance of probabilities, that he was allocated the stand in question and lawfully acquired rights, title and interest in the property. The evidence shows that in the special circumstances of the transaction between the plaintiff and the second defendant, the plaintiff is the rightful owner of the property. On the other hand, the first defendant had nothing in her defence to challenge the plaintiff's entitlement to the relief sought. Her occupation is without the plaintiff's consent nor that of the second defendant. The official position of the responsible authority or the Ministry in charge of the state land is that the plaintiff is the rightful owner of the property notwithstanding that the property is still registered as State land. The court cannot disregard the official position set out by its witness whose evidence was left largely undisturbed by the cross-examination of Mr *Lunga*. Accordingly, the court ought to find in favour of the plaintiff. The plaintiff is entitled to the relief sought.

The first defendant is in illegal occupation of the plaintiff's property. The first defendant cannot seek the court's protection as the court has no jurisdiction to sanction an illegality. See *Mashayamhanda* v *Bariadie Investments (Pvt) Ltd & Anor* SC 17/24 para 30, where BHUNU JA said:

> "In my view, the proffered opinion is bad at law and goes against the grain of Zimbabwean public policy and established legal principles that **one cannot be allowed to benefit from his own wrong or unlawful conduct**. The applicant having admitted that he is unlawfully occupying the respondent's property in bad faith as determined by the Supreme Court, **such type of conduct**

> **cannot be sanctioned by the courts**. **It is unconscionable and manifestly unjust for the courts to perpetuate unlawful or wrongful conduct**." (*my emphasis*)

The purported improvements she effected being a product of an illegality would constitute illegal developments. They cannot give her any right to retain possession of the property. She cannot benefit from her own wrong. Her conduct of taking the law into her own hands must be condemned in the strongest of terms. The plaintiff has been wrongfully deprived of exercising his exclusive right to occupy and develop the property by the continued illegal possession of the property by the first defendant. The court's intervention is justified.

As regards costs, there is no reason to depart from the general rule that costs should follow the cause.

In the result, I issue the following order:

1. The plaintiff's claim for a declaratory order and consequential relief be and is hereby granted.
2. The plaintiff be and is hereby declared the rightful owner of stand number 1341 Whitecliff, Harare.
3. The first defendant and all those claiming occupation through her shall vacate stand number 1341 Whitecliff, Harare.
4. The first defendant shall pay the costs of suit.

DEMBURE J: ……

Lunga Mazikana Attorneys, plaintiff's legal practitioners
Tsara & Associates, first defendant's legal practitioners
The Civil Division, Attorney General's Office, second defendant's legal practitioners.